No. S22D0915

IN THE SUPREME COURT OF GEORGIA

DANYEL SMITH,
Petitioner,

v.

STATE OF GEORGIA,
Respondent.

On Appeal from the Superior Court of Gwinnett County, State of Georgia
(Civil Action File No. 02-B-2388-6)

AMICUS CURIAE BRIEF OF INTERESTED LEGAL PROFESSIONALS IN SUPPORT OF PETITIONER DANYEL SMITH'S APPLICATION FOR DISCRETIONARY APPEAL

KING & SPALDING, LLP
1180 Peachtree Street NE
Suite 1600
Atlanta, Georgia 30309
Telephone: (404) 572-3547
Facsimile: (404) 572-5100

Ronni Solomon
Georgia Bar No. 666637
rsolomon@kslaw.com
Alana Broe
Georgia Bar No. 411662
abroe@kslaw.com
Devon Sherrell
Georgia Bar No. 624945
dsherrell@kslaw.com

Counsel for *Amicus Curiae*

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STATEMENT OF INTEREST

Amicus curiae are a broad group of individuals and entities—from prosecutors to defense attorneys, from academia to public interest organizations—committed to exonerating the innocent and to ensuring the integrity of our criminal justice system. Amici have particular interest and experience in examining the causes of wrongful convictions and have documented the role that the misapplication of scientific evidence has played in producing miscarriages of justice. The threat that such misapplication presents to the fair administration of justice is particularly grave in homicide cases and those involving the alleged abuse of a child. Amici have a compelling interest in ensuring that scientific evidence and testimony is accurate throughout the criminal justice system, and that criminal convictions are remedied when errors in forensic science testimony or changes in scientific and medical understanding are discovered. Additional detail regarding each amicus participant is attached hereto as **Appendix A**.

INTRODUCTION

In the twenty years since Danyel Smith was convicted, the science surrounding Shaken Baby Syndrome ("SBS"; sometimes called Shaken Baby Syndrome/Abusive Head Trauma, or "SBS/AHT") has changed. New medical and technical developments have confirmed that the "triad"[1] of findings formerly thought to be unique to SBS, is not a reliable indicator of SBS in children, but instead may be indicative of other causes unrelated to child abuse. Today, the medical community acknowledges that the diagnostic approach to SBS is different than it was in 2003 and that, applying today's diagnostic approach to the constellation of symptoms reflected in Mr. Smith's child's medical chart reveals Mr. Smith's child died from natural causes, not SBS. Because the scientific landscape has changed in the 20 years since his conviction, Mr. Smith is entitled to a hearing to present this new evidence, which was not available when Mr. Smith was convicted in 2003.

ARGUMENT AND CITATION OF AUTHORITIES

Georgia has long recognized that a defendant is entitled to a new trial when new evidence arises and he has acted diligently in presenting it to the court. *See*

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[1] Three medical findings were proposed by supporters of the SBS/AHT hypothesis as diagnostic of shaking or shaking with impact. Those findings are: subdural hematoma (bleeding under the protective tissue covering the brain), retinal hemorrhage (bleeding at the back of the eye), and encephalopathy (brain dysfunction and swelling).

Timberlake v. State, 246 Ga. 488, 491 (1) (1980) (citing *Berry v. State*, 10 Ga. 511, 527 (1851)). And more than a dozen jurisdictions across the United States have acknowledged that the development of scientific and medical understanding surrounding SBS constitutes new evidence warranting the grant of a new trial. Based on this widely recognized, fundamental shift in the medical underpinnings of an SBS diagnosis, the trial court erred when it failed to grant Mr. Smith even a hearing on his extraordinary motion for new trial ("EMNT").

The question before the court is a narrow one—whether Mr. Smith pled sufficient facts—like the defendant in *Stinchcomb v. State*—to qualify for an evidentiary hearing on his EMNT. *See* 308 Ga. 870, 875 (2) (c) (2020). Whether a defendant has pled sufficient facts to entitle him to a hearing is a question of law that this Court reviews *de novo*. *See id*. And at this juncture, similar to a motion to dismiss, the court should not consider whether the affidavit or the facts pled in support of Mr. Smith's EMNT are proven, but whether those facts, "if deemed credible," would entitle him to a new trial. *See id*. at 881 (noting that key portions of the affidavit proffered by defendant, if deemed credible, demonstrated new evidence that would satisfy EMNT standards and trial court therefore erred in refusing to grant defendant an evidentiary hearing).

Here, just as in *Stinchcomb*, Mr. Smith pled sufficient facts and proffered an affidavit showing that the science and medical analysis that solidified his conviction

has changed in the intervening years since his conviction, and the trial court erred in denying Mr. Smith's EMNT without an evidentiary hearing.

I. The Trial Court Erred in Concluding That Mr. Smith Did Not Meet the Standard for Granting an Evidentiary Hearing on an EMNT Based on Newly Discovered Evidence.

Georgia courts apply a familiar six-part test for determining whether a party is entitled to a new trial. In the criminal context, to be entitled to a hearing on an EMNT, a defendant must plead sufficient facts, that if ultimately proved, would show (1) that the evidence has come to his knowledge since the trial; (2) that it was not owing to the want of due diligence that he did not acquire it sooner; (3) that it is so material that it would probably produce a different verdict; (4) that it is not cumulative only; (5) that the affidavit of the witness regarding new evidence is procured or its absence accounted for; and (6) that the only effect of the evidence will not be to impeach the credit of a witness. *See Timberlake*, 246 Ga. 488, 491 (1); *Stinchcomb*, 308 Ga. at 879 (2) (c). If the pleadings "'contain a statement of *facts* sufficient to authorize that the motion be granted,'" it is error to deny the motion without a hearing. *Stinchcomb*, 308 Ga. at 875 (emphasis in original; citation omitted).

Here, Mr. Smith has pled sufficient facts satisfying all six requirements, and the trial court erred by failing to grant him a hearing on his EMNT. The State has challenged Mr. Smith's satisfaction of factors (1) and (2)—that the evidence came

to Mr. Smith's knowledge since the trial and that it was not owing to the want of due diligence that Mr. Smith did not acquire it sooner. Amici, therefore, focus solely on these two factors here.

A. Mr. Smith has presented newly discovered evidence.

At a macro level, this case is about the discovery of new evidence—in this case, new understandings of medical or scientific evidence—that changes the interpretation of existing physical evidence. "It is the discovery of unknown evidence, and not the ascertainment of the materiality of known evidence, which can serve as a cause for a new trial." *Id*. On this point, all sides agree. *See* Amended Order Denying Extraordinary Motion for New Trial at 4 (noting the inquiry for determining the existence of new evidence focuses on "the evidence itself"). Indeed, that is why this Court in *Stinchcomb* found the content of an eyewitness's affidavit, rather the knowledge of the eyewitness himself, to be newly discovered evidence. *See* 308 Ga. at 877.

The trial court erred in determining that Dr. Ghatan's opinion is not newly discovered evidence under the familiar *Timberlake* rubric. *See* 246 Ga. at 491. Specifically, the trial court found that Dr. Ghatan's diagnosis of the child's death of natural causes—despite being based on a new understanding of medical diagnostic standards—was not new evidence because he purportedly only "offer[ed] a different interpretation of the medical records used at trial . . . to challenge the scientific basis

of shaken baby diagnosis." Amended Order Denying Extraordinary Motion for New Trial at 4–5. The State now makes the same argument on appeal. But this is a clear misapplication of the standard under Georgia law. Such an expert opinion would not have been available at Mr. Smith's trial even though the underlying medical records were available, because the new understanding of medical diagnostic standards that interpret those records *did not exist*.

To qualify for a hearing on an EMNT, the moving party must plead sufficient facts tending to show that new evidence has come to his knowledge since the trial and that the discovery of that new evidence was gleaned not owing to a want of due diligence. The traditional application of this rule permitted new trials for the discovery of new witnesses or physical evidence. And as science and technology have evolved, courts around the country have increasingly granted EMNTs based on the development of new scientific evidence.

Scientific advancements that are applied to existing physical evidence may produce at least two types of new evidence sufficient to grant an EMNT: (1) new tangible evidence and (2) new expert opinion evidence. The first category of new evidence is plainly sufficient to meet the *Timberlake* standard under existing precedent from this Court. *See State v. Gates*, 308 Ga. 238 (2020) (granting an EMNT based upon newly discovered DNA test results using *TrueAllele* technology).

The clear application of this established precedent must cover the second category of new evidence as well.

i. New evidence resulting from scientific advances is new evidence under established Georgia precedent.

Georgia courts have recognized that new tangible evidence resulting from scientific advancements can constitute new evidence for the purposes of an EMNT. The seminal case establishing this principle is *State v. Gates*, wherein this Court held that advancements in DNA-testing technology—which yielded a much more specific analysis of DNA evidence than previously available means of analysis—constituted newly discovered evidence for purposes of an EMNT. *See* 308 Ga. at 238. In *Gates*, the defendant was convicted of murder after the victim was found dead in her apartment with a gunshot wound to her head. *Id.* at 239-40. Shortly after the defendant's EMNT, a belt and neckties used in the killing were tested for DNA evidence, but the results were "'inconclusive' after human interpretation of the results (which was apparently the only method of interpretation used by the GBI at that time)." *Id*. at 258. One year later, the defendant moved to have the items retested using new *TrueAllele* genotyping software, "a software program that uses probabilistic genotyping to objectively interpret degraded, low-level, and complex mixtures of DNA." *Id*. at 250. The trial court ordered further testing, and the results "excluded [the defendant] as a contributor to the DNA mixture found on the belt and tie." *Id*. at 248. With the benefit of these new results, the trial court granted the

defendant's EMNT. *Id.* On appeal from the grant of the defendant's EMNT, this Court found that the DNA results produced by the "more sophisticated DNA testing and analysis methods" were "newly discovered DNA evidence." *Id*. at 452–53. In other words, the application of new science to uncover a new understanding from existing physical evidence is precisely what the defendant in *Gates* relied upon to establish that newly discovered evidence entitled him to a new trial.

Similarly, although not dealing with new expert opinion evidence, this Court in *Stinchcomb* found the content of a witness's affidavit to be newly discovered evidence, even though the defendant knew about the witness at the time of trial. *See* 308 Ga. at 877 (even though witness "was known to the parties at the time of trial," the "witness is not the evidence at issue—the content of his sworn affidavit is").

It is this precise distinction that the trial court failed to appreciate in evaluating Mr. Smith's EMNT. The trial court held that "[r]ather than show newly discovered evidence, [Mr. Smith] has only offered expert opinion to challenge the scientific basis of shaken baby diagnosis as described in the [Mr. Smith's] supporting affidavit." But Dr. Ghatan's affidavit does not merely challenge the State's SBS diagnosis; rather, it offers new evidence based on how doctors *now* analyze the purported triad of symptoms underpinning SBS to show that the medical opinion offered at Mr. Smith's trial—that all but guaranteed his conviction—was erroneous,

and that the child passed away from natural causes—*not* SBS. It is precisely the same type of new analysis contemplated by this court in *Gates*.

ii. New testimony is also new evidence for the purposes of an EMNT

It would make little sense to limit the holdings of *Gates* and *Stinchcomb* to new tangible evidence. Contrary to the State's assertions, it is established under Georgia law that new *testimony*—not merely new physical evidence—may constitute the new evidence necessary for granting an EMNT under *Timberlake*.[2] In fact, "[e]vidence"—for the purposes of applying *Timberlake*'s new evidence standard—is defined as "something (*including testimony*, documents, and tangible objects) that tends to prove or disprove the existence of an alleged fact." *Stinchcomb*, 308 Ga. at 877 (2) (a) (citing *Black's Law Dictionary* (11th ed. 2019)) (emphasis added). As noted, in *Stinchcomb*, this Court held that the defendant was entitled to a hearing on his EMNT on the basis of the newly discovered testimony of a witness who existed at the time of trial. And Georgia courts have always

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[2] In the cases cited by the State in Section 1 of its Response, the purported new evidence failed under *Timberlake* for want of satisfying one of the other six factors, *not* because new expert testimony is not a permissible form of new evidence. *See Wesleyan Coll. v. Weber,* 238 Ga. App. 90, 97 (1999) (expert testimony was cumulative of evidence introduced at trial and not newly discovered); *Allen v. State*, 187 Ga. 178, 180 (1938) (testimony was merely impeaching in character); *Bass v. State*, 154 Ga. 112, 113 (1922) (testimony was knowable prior to trial "by the slightest diligence").

recognized the validity of expert testimony that is backed by a reliable, often peer-reviewed methodology. *See e.g. Hamilton v. State*, 309 Ga. 1, 9 (3) (2020).

Thus, because Georgia courts recognize that *both* new scientific developments *and* non-cumulative testimony can constitute new evidence under *Timberlake*, it follows that new expert testimony applying scientific developments is new evidence. At least one Georgia trial court has held as much. *See State v. Denton*, No. 04-R-330, 2020 WL 7232303, at *1 (Ga. Super. Ct. Feb. 07, 2020). In *Denton*, the court held that expert opinion testimony regarding a sea change in the scientific understanding of bite-mark evidence was sufficient to warrant a new trial. *Id.*

iii. Other jurisdictions have widely held that new opinion evidence resulting from scientific advancement may constitute new evidence for purposes an EMNT.

Applying the holdings of *Gates* and *Stinchcomb* to the facts of this case would be consistent with a growing volume of cases in other jurisdictions holding that new opinion evidence resulting from scientific advancement is new evidence. Other jurisdictions consistently hold that new expert testimony—based on a better understanding of the pertinent science—is new evidence. And many jurisdictions have held that new analysis of a patient's medical records in light of the significant evolution in the medical understanding of SBS, in particular, constitutes new evidence.

To begin with, many other courts have granted new trials in cases in which expert opinion demonstrates that a conviction is based upon newly discredited or otherwise unreliable scientific evidence. *See, e.g.*, *Bunch v. State*, 964 N.E.2d 274, 293 (Ind. Ct. App. 2012) (granting motion for new trial based on newly discovered expert opinion evidence relating to advances in fire science); *State v. Behn*, 868 A.2d 329, 332, 344 (N.J. Super. Ct. App. Div. 2005) (granting a petition for a new trial because affidavit from expert demonstrated new scientific research in the field of bullet lead analysis had developed following trial called "into question, if not totally undermin[ed]" the original trial analysis).

Additionally, courts have routinely set aside convictions where the science underlying a conviction is later discredited. *See e.g. Han Tak Lee v. Houtzdale SCI*, 798 F.3d 159 (3d Cir. 2015) (overturning arson conviction based on newly discovered unreliability of expert testimony which underlay a defendant's conviction, because "the verdict rested almost entirely upon scientific pillars which have now eroded")*; Ex Parte Chaney,* 563 S.W.3d 239 (Tex. Ct. Crim. App. 2018) (granting habeas petition based on bite-mark evidence because "the body of scientific knowledge underlying the field of bite mark comparisons evolved in a way that discredits almost all the probabilistic bite mark evidence at trial").

Finally, in the SBS context specifically, courts around the country have recognized that expert testimony regarding advancements in the way SBS is

diagnosed—or ruled out—constitutes newly discovered expert opinion evidence. *See, e.g.*, *People v. Miller*, No. 346321, 2021 WL 1326733, at *5 (II) (Mich. Ct. App. Apr. 8, 2021); *Jones v. State*, No. 0087, 2021 WL 346552, at *14–15 (Md. Ct. Spec. App. Feb. 2, 2021) (granting defendant's petition for a writ of actual innocence on a 1999 SBS conviction, holding "scientific evidence that calls into doubt the validity or admissibility of evidence that was introduced at trial can qualify as newly discovered evidence."); *People v. Bailey*, 144 A.D.3d 1562, 1564, 41 N.Y.S.3d 625, 627 (2016) (vacating mother's conviction based on SBS because new evidence resulting from "advances in medicine and science" shows "significant and legitimate debate" around the diagnosis of SBS); *Del Prete v. Thompson*, 10 F. Supp. 3d 907, 954 (N.D. Ill. 2014) (granting habeas relief to defendant convicted based on evidence of SBS because "equally new and equally significant" medical evidence provided through expert testimony offered alternate explanations for baby's death); *Wisconsin v. Edmunds*, 746 N.W.2d 590, 598–99 (Wis. Ct. App. 2008) (vacating conviction where expert medical testimony demonstrated "that a significant and legitimate debate in the medical community" surrounding SBS diagnoses had emerged)[3].

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3 In *Edmunds*, the court granted a new trial based on "the emergence of a legitimate and significant *dispute* within the medical community as to the cause of

In *Miller,* for example, a defendant convicted in 2003 for killing her child solely on the basis of the "classic triad" of SBS symptoms moved for relief from judgment proffering the expert testimony of physicians who analyzed the deceased child's medical records in light of the new medical understanding of SBS. *See People v. Miller*, No. 346321, 2020 WL 4554873, at *2 (II) (Mich. Ct. App. Aug. 6, 2020). The experts supporting the defendant's motion averred that in 2003, the presence of the triad of SBS symptoms was believed to "represent a sure constellation of findings indicating injury from shaking[,]" but in 2020, the triad "is no longer widely accepted." *Id*. at *2. Reversing the trial court's denial of an evidentiary hearing on Miller's motion, the court held that "a shift in scientific consensus undermining the evidence presented at trial would indeed constitute newly discovered evidence." *Id*. at *6.

Later, on appeal from the trial court's grant of a new trial, after holding a hearing on the new evidence, the court affirmed, holding that "a shift in scientific consensus occurring after a final judgment of conviction similarly satisfies the 'new evidence' standard." *Miller*, 2021 WL 1326733 at *4 (II).

[purported SBS] injuries." 746 N.W.2d at 596. The State cites *Edmunds* to argue that the triad of SBS symptoms was discredited many years ago. But a "dispute" is insufficient to demonstrate new medical understanding constituting *admissible* new evidence under Georgia law. *See Harper v. State*, 249 Ga. 519 (1) (1982) (scientific evidence must be supported by a reliable principle or technique that has reached a scientific stage of verifiable certainty).

Likewise, here, holding that Dr. Ghatan's recent evaluation of Smith's child's medical record is new evidence—in light of the now-advanced medical understanding of SBS—would be in line with the growing volume of courts across the country finding such evidence sufficiently "new" to warrant a new trial. Thus, to the extent the trial court's decision rests on the notion that evidence may not be newly discovered if it merely relies upon existing evidence, that holding is flawed. Where new science or—in this case, new diagnostic principles—reveal new understandings of the pre-existing evidence, that new understanding may entitle a defendant, like Mr. Smith, to a new trial. At a minimum, it requires that the trial court hold an evidentiary hearing to allow the introduction of the evidence and to develop a record of the proffered evidence for potential appeal.

B. Mr. Smith exercised due diligence in obtaining the evidence and bringing his EMNT

The second element of the *Timberlake* test requires that the defendant show that the discovery of new evidence was not discovered late "owing to the want of due diligence that [the defendant] did not acquire it sooner." 246 Ga. at 490–91. *Timberlake*'s diligence standard is couched in terms of whether "the moving party exercised due diligence but, *due to circumstances beyond [his] control*, was unable previously to discover the basis for the claim [he] now asserts." *Bharadia v. State*, 297 Ga. 567, 570 (2015) (emphasis added). Indeed, this Court's decision in *Gates* highlights that the diligence requirement is based on the defendant's *ability* to put

forward exonerating evidence—that is, whether due to the state of forensic analysis, he is *now able* to evaluate the evidence in such a way that could prove his innocence—not merely that such evidence existed as a matter of fact. *See* 308 Ga. at 257–58.

The trial court erred in concluding that Mr. Smith could have presented similar medical opinions to those of Dr. Ghatan in 2003 and thus could not have exercised due diligence prior to or during his trial. This Court explained in Mr. Smith's direct appeal that his trial counsel acted reasonably in relying upon a medical expert who told him while preparing for trial that further medical evidence would not have helped Mr. Smith. *Smith v. State*, 283 Ga. 237, 238 (2) (a) (2008). If anything, because of the state of medical diagnostic standards at the time, the trial court's hypothetical medical expert would have served only to impeach the State's doctor. But this Court's conclusion that counsel made a reasonable, strategic decision in choosing not to call such an expert (and instead focus on an alternative defense) reveals the inherent tension between *Timberlake*'s diligence requirement and Georgia's standard for ineffective assistance of counsel when it is used as a blanket tool to deny a defendant an evidentiary hearing: it puts trial counsel in the untenable position of either (a) having to put forward what is the strongest defense theory at the time, or (b) choosing a potentially less powerful (at best) or harmful (at worst)

defense theory with an eye toward how medical diagnostic standards *might* change in the future.

By the same token, because advances in science and medicine are almost never flicked on like the switch of a light, the trial court's conclusion forces an indigent defendant (or, if he is lucky, his counsel) to make a prediction about when the state of forensic analysis has advanced enough to allow him to press his claim of innocence. If not advanced enough, he risks a denial of an evidentiary hearing on the basis that it is either not newly discovered or unlikely to produce a different verdict; if progressed to the point where it makes clear that the defendant likely did not commit the crime, it might be too late to raise under the diligence standard and again strip the defendant of a hearing. Georgia law only permits a defendant *one* opportunity to bring an EMNT, so if he brings the motion before the evidence is properly developed, he cannot bring the motion again at a later date when the scientific consensus is more fully developed. *See* O.C.G.A. § 5-5-41(b).

With liberty at stake, defendants and amici should not be forced to make their best guesses within this gray area; instead, this Court should view this case not only as the opportunity to correct clear trial court error but also to clarify the diligence standard as it relates to the granting of an evidentiary hearing on an EMNT. Mr. Smith's EMNT counsel—once the medical understanding of SBS advanced enough to reexamine the evidence in this case—worked diligently to secure a new diagnosis

of Smith's child and to present that new diagnosis to the trial court, entitling Mr. Smith to a hearing. The trial court's finding otherwise is error.

i. Mr. Smith exercised due diligence prior to and during trial, but because of circumstances beyond his control, he could not have discovered the new medical analysis of his child's cause of death.

Before and during trial, it is not as if Mr. Smith (or his counsel) was idly sitting by, merely accepting the State's theory that his child died from SBS. In fact, this Court noted that in preparing for trial, Mr. Smith's counsel conferred with a medical expert "on more than one occasion," who advised him that after reviewing the child's medical records, "further medical evidence would not have been favorable to Smith[.]" *Smith*, 283 Ga. at 238. Moreover, trial counsel "conduct[ed] medical research on his own." *Id*. The Court concluded that counsel's decision "not to pursue additional medical investigations after consulting with his expert" was a "reasonable" one. *Id*. It cannot be the case that trial counsel was not ineffective for failing to investigate additional medical evidence, but he was also not diligent for failing to investigate additional medical evidence; but that is precisely the end result of the trial court's ruling.

The trial court and the State make much of the fact that Mr. Smith's trial counsel opted for a defense theory that the child's mother inflicted fatal injuries on the child rather than Mr. Smith. *See* Amended Order Denying Extraordinary Motion for New Trial at 7–8; Resp. Brief at 10. But as noted, Mr. Smith's trial counsel—

relying on a medical expert who evaluated the child's death pursuant to medical diagnostic standards *available at the time*—concluded that any medical theory would be weak and made the strategic decision to rely on a separate theory—one that would be inconsistent with the argument that the child was not murdered. *See McClure v. State*, 306 Ga. 856, 866 (2019) (Nahmias, P.J., concurring) ("Presenting inconsistent defenses to the jury, particularly when the evidentiary support for one defense is considerably weaker than for others . . . risks losing credibility for *all* of the defenses.") (emphasis in original). Obviously, the calculus would likely have been different had medical analysis been available in 2003 that would have allowed Mr. Smith's medical expert to properly diagnose the child and opine that he was not killed.[4]

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4 The state argues—and the trial court adopted—that Mr. Smith was not diligent because "[c]ontroversy and challenges" existed as to the triad of SBS symptoms at the time of Mr. Smith's trial. But under Georgia law, for scientific opinion evidence to be admissible, it must have reached a standard of "verifiable certainty." *Harper*, 249 Ga. at 519 (1) (1982). The State's (and the trial court's) reliance on three out-of-state cases and one article from the mid-2000s demonstrating that debate surrounding the medical consensus of SBS diagnoses do not demonstrate that an alternate cause of the child's death had reached a stage of "verifiable certainty." Had Mr. Smith been able to identify an expert to support a challenge to the expert testimony when the "doubt" emerged, the trial court may have found such evidence to be inadmissible under the *Harper* standard. *See Miller*, 2020 WL 4554873, at *3 (concluding that "a physician advocating an alternate explanation for the findings [other than the SBS triad] may have been precluded from testifying on *Daubert* grounds" in 2003).

In tackling this gray area, this Court is not on its own; "nearly every jurisdiction requires that [a defendant seeking a new trial based on newly discovered evidence] prove (at a minimum) that the purported new evidence could not have been discovered with due diligence at the time of trial." Daniel S. Medwed, *Up the River Without a Procedure: Innocent Prisoners and Newly Discovered Non-DNA Evidence in State Courts*, 47 ARIZ. L. REV. 655, 689 (2005). The diligence standard—and the other requirements baked into *Timberlake*—"should provide the requisite safeguard to prevent guilty prisoners from slipping through the opening created by removing some procedural roadblocks that confront new evidence claims." *Id.* "That is, even if a factually guilty defendant were to have his new evidence claim assessed during a post-trial evidentiary hearing . . . he would still likely struggle to carry the burden of proving that all of the requirements for relief are met." *Id.* This principle underpinned this Court's decision in *Stinchcomb*, which suggested that even if the question of diligence is *close* based on the defendant's supporting affidavit, the trial court should grant an evidentiary hearing. 308 Ga. at 878-89.

To be clear: amici are not arguing that the diligence standard be weakened or done away with. Instead, they are concerned that in a case like this—hinging on newly discovered, non-DNA evidence that developed over the course of several decades—the standard should not be used to deny a defendant the right to an

evidentiary hearing. Moreover, this Court should make clear that the State may not continue to argue that on the one hand that trial counsel was not ineffective for failing to pursue additional medical evidence (that did not exist at the time of the defendant's trial) rather than opting for a more viable defense theory, yet on the other hand claim that this strategic decision proves that the defendant was not diligent before or during trial in seeking exonerating evidence that could not have existed when the defendant was convicted.

ii. Mr. Smith exercised due diligence after trial, raising his child's new medical diagnosis quickly after advanced medical analysis of his child's cause of death became available.

The trial court similarly erroneously concluded that Mr. Smith failed to exercise due diligence in discovering new medical evidence post-trial. The advancement of science and medicine does not occur overnight. The diligence standard must be workable, particularly in light of *Gates* and *Stinchcomb*, which make clear that courts should measure diligence from the time that the new forensic analysis can be applied to the case's existing evidence.

The standard the State asks this Court to apply—in essence requiring a jailed, indigent defendant to keep constantly apprised of advancements in science and medicine *and* to understand how those advancements might apply to *his case*—is unworkable. Merely because science has developed does not mean that science has been applied to the facts of a particular case; much less that an indigent defendant

can easily become aware of that science or have access to an expert or counsel willing to review a defendant's case for new evidence.

It is in this context where the State's view of the law is most flawed—and where amici have the most interest. Indeed, it is not simply the development of science—or medicine, technology, or any other field of expertise—that triggers the requirement of a defendant to act with due diligence; it is a defendant's awareness and application of new science to a particular case. To hold otherwise would require convicted defendants locked behind prison doors to be reading the latest academic medical journals, to hire or retain experts—wherever they may be and regardless of *their* willingness, interest, or ability—to review and apply developing science to their cases as soon as that science becomes available to the public at large—regardless of a defendant's ability, financial or otherwise, to follow it—or risk the undesirable position of being locked away forever due to a lack of "diligence." *See Jimerson v. Payne,* 957 F.3d 916 (8th Cir. 2020) (concluding to require "that due diligence obligates a defendant to monitor his co-defendant's court filings for information that could give rise to post-conviction relief . . . would go beyond the statutory requirement of due diligence, particularly when the [defendant] was indigent, had been incarcerated for over 20 years, and had no means for funding an investigator or attorney").

While it is understandable why the due diligence standard must be rigorous, it cannot be an impenetrable shield. Where standards of diligence in bringing forward new evidence are based not upon developments in the law, but upon new science, or, as here, prevailing views about how to diagnose a particular injury, courts should give breathing room, not only for defendants pursuing claims of actual innocence, who must do the necessary work to ensure they have a meritorious claim, but also to take into account the reality of *both* (a) science and medicine, which are on a trajectory of constant advancement, and (b) the ability of indigent defendants to become aware of advancements that might prove their innocence.

II. Taking the Facts in Dr. Ghatan's Affidavit as True, Mr. Smith is Entitled to a Hearing to Present His Newly Discovered Evidence.

Critically, at this stage, Mr. Smith does not need to prove that any of the *Timberlake* factors are satisfied. Rather, to qualify for a hearing on his EMNT, Mr. Smith need only "provide sworn affidavit testimony, or an explanation for the absence of such affidavit testimony, showing with clarity and specificity the facts he or she intends to prove in a hearing and how those proffered facts support his or her claim that a new trial is warranted." *Davis v. State*, 283 Ga. 438, 448 (2008). "Where a defendant pleads such facts in his extraordinary motion and submits supporting affidavits, a trial court errs by ruling on the motion without first holding an evidentiary hearing." *Stinchcomb*, 308 Ga. at 875. Whether a trial court erred in deciding that a defendant has not pled sufficient facts entitling him to a hearing is

reviewed *de novo*. *See id*. (citing *Ford Motor Co. v. Conley*, 294 Ga. 530, 538 n.7 (2014)). Here, Mr. Smith has done that, and a hearing should be granted.

Stinchcomb is dispositive here. In *Stinchcomb*, the defendant proffered an affidavit from an eyewitness that provided facts "largely consistent with the evidence presented at trial," and "several facts that len[t] significant support to [the defendant's] claim of self-defense;" namely, that the defendant fired his weapon only after the victim shot at him first. *See* 308 Ga. at 875-76. This Court held that "key portions of [the eyewitness's] affidavit, *if deemed credible*, appear to be non-cumulative . . . to serve a purpose beyond impeaching the credibility of a witness, and . . . material as to probably produce a different verdict," and, significantly, that "the trial court erred by denying Stinchcomb's motion without the benefit of a hearing." *Id*. at 881 (emphasis added). In other words, it is error for a trial court to make credibility determinations regarding the weight of evidence submitted in support of an EMNT without an evidentiary hearing.

Here, just as in *Stinchcomb*, Mr. Smith adequately pled facts tending to show each of the *Timberlake* requirements and proffered a comprehensive affidavit of a medical expert in support. The trial court erred in denying Mr. Smith's EMNT without an evidentiary hearing by making credibility determinations regarding the weight of the opinions contained in Dr. Ghatan's affidavit submitted in support of that motion. Amicus curiae urge this Court to find that it was error for the trial court

to reject the well-pled statements of fact in Dr. Ghatan's affidavit as credible *at least* for the purposes of granting Mr. Smith a hearing on his EMNT. Allowing trial courts to simply copy-and-paste the State's brief—and thus accept its credibility determinations without giving a potentially (and in this case likely) innocent defendant the benefit of a hearing—undermines confidence in our judicial system to evaluate claims of new evidence and contravenes black letter law in Georgia regarding the availability of such a hearing when the evidence supports it.

CONCLUSION

For the foregoing reasons, amici urge this Court to grant Mr. Smith a discretionary appeal. This case satisfies the standards of Supreme Court Rule 34 given that (1) the trial court committed reversible error by failing to grant Mr. Smith an evidentiary hearing; and (2) the bench and bar would benefit from additional precedent clarifying that changes in scientific or medical consensus warrants a new trial under *Timberlake*. *See* Ga. S. Ct. R. 34.

At this juncture, the Court need not determine whether the new evidence is sufficient to warrant a new trial. This Court need not even determine whether Mr. Smith pled sufficient facts to warrant a hearing on his motion. At this stage, the Court need only determine whether Mr. Smith is entitled to the opportunity to appeal the trial court's denial of an evidentiary hearing. The trial court erred by denying

Mr. Smith's motion without the benefit of a hearing, and this Court should grant Mr. Smith's application for discretionary appeal.

Respectfully submitted this 25th day of April, 2022.

KING & SPALDING, LLP

/s/ Ronni Solomon
Ronni Solomon
(Georgia Bar No. 666637)
Alana Broe
(Georgia Bar No. 411662)
Devon Sherrell
(Georgia Bar No. 624945)
KING & SPALDING, LLP
1180 Peachtree Street NE
Suite 1600
Atlanta, Georgia 30309
Telephone: (404) 572-3547
Facsimile: (404) 572-5100
rsolomon@kslaw.com
abroe@kslaw.com
dsherrell@kslaw.com

COUNSEL FOR AMICUS CURIAE

APPENDIX A

List of *Amici Curiae* and Relevant Affiliations

Brandon Garrett (in an individual capacity)
L. Neil Williams Professor of Law, Duke University School of Law
Director, Wilson Center for Science and Justice

Valena Beety (in an individual capacity)
Professor, Arizona State University Sandra Day O'Connor College of Law
Deputy Director, Academy for Justice

Dexter Gilford
Director of Civil Rights, Conviction Integrity, and Appellate Litigation, Travis County District Attorney's Office, Travis County, Texas

Jee Park
Executive Director, Innocence Project New Orleans

Melissa Giggenbach
Director, West Virginia Innocence Project

Devon Unger
Staff Attorney, West Virginia Innocence Project

Mike Ware
Executive Director, Innocence Project of Texas

Tucker Carrington
Director, Mississippi Innocence Project

Paige Kaneb (in an individual capacity)
Associate Clinical Professor, Santa Clara University School of Law
Supervising Attorney, Northern California Innocence Project

David Moran (in an individual capacity)
Clinical Professor and Codirector, Michigan Innocence Clinic, University of Michigan Law School

Amicus David Moran has served as counsel or co-counsel in four cases involving exonerations from convictions based on Shaken Baby Syndrome/Abusive Head Trauma: those of Julie Baumer, Shawn Brown, Terry Ceasor, and Tonia Miller. Mr. Moran currently represents several more people who have been convicted of child abuse or homicide based on the "triad" of SBS/AHT symptoms.

Sarah Rackley Olson (in an individual capacity)
Forensic Resource Counsel, North Carolina Indigent Defense Services
Amicus Sarah Rackley Olson serves as Forensic Resource Counsel for the North Carolina Office of Indigent Defense Services. Ms. Olson provides training and case consultation on scientific evidence to public defenders and court-appointed attorneys across North Carolina. Ms. Olson regularly consults on cases involving allegations of abusive head trauma at the trial, appellate and post-conviction levels to ensure defenders have access to training and expert assistance in cases involving complex scientific evidence.

Janis C. Puracal
Executive Director, Forensic Justice Project
Amicus Forensic Justice Project ("FJP") is a nonprofit organization dedicated to preventing and correcting wrongful convictions related to forensic evidence. To that end, FJP associates in criminal cases at all stages of the process, from pre-trial through post-conviction, to keep bad science out of the courtroom and get good science into the courtroom.

Katherine H. Judson
Center for Integrity in Forensic Sciences
Amicus The Center for Integrity in Forensic Sciences, Inc. ("CIFS") is a national non-profit organization incorporated in Wisconsin. CIFS is the first non-profit organization in the United States to bring exclusive focus to improvement of the reliability and safety of criminal prosecutions through strengthening the forensic sciences. Its educational and service goals span all facets of the judicial system and experiential education of tomorrow's lawyers and scientists.

M. Chris Fabricant
Tania Brief
Innocence Project, Inc.
Amicus The Innocence Project, Inc. is a nonprofit organization whose principal mission is to provide pro bono legal and investigative services to indigent prisoners. The Innocence Project works to identify and investigate cases of wrongful convictions and to obtain the release of wrongly convicted persons from prison. To

date, the efforts of the Innocence Project and similarly motivated organizations have led to the exoneration of hundreds of individuals throughout the country. The Innocence Project also researches the causes of wrongful convictions and advocates—both in individual cases and through legislative and administrative initiatives—for changes in the law (and law-enforcement procedures) that would reduce the risk of wrongful conviction. Significantly, the Innocence Project's research demonstrates the threat to the truth-seeking function of criminal trials posed by unreliable or exaggerated forensic evidence. Indeed, nearly 52% of the individuals exonerated by post-conviction DNA testing were convicted based at least in part on expert forensic evidence that turned out to be wrong. See Innocence Project, Overturning Wrongful Convictions Involving Misapplied Forensics, available at https://www.innocenceproject.org/overturning-wrongful-convictions-involving-flawed-forensics/. As a result, to increase the integrity of convictions and reduce the risk of an innocent person being found guilty, the Innocence Project urges courts to act as robust gatekeepers and ensure that expert forensic evidence is admitted at trial only when it has strong scientific support—particularly in the form of well-designed empirical studies.

Lina Starr
Innocence Network

Amicus Innocence Network (the Network) is an association of independent organizations dedicated to providing pro bono legal and/or investigative services to prisoners for whom evidence discovered post-conviction can provide conclusive proof of innocence. The 68 current members of the Network represent hundreds of prisoners with innocence claims in 50 states, the District of Columbia, and Puerto Rico, as well as Australia, Argentina, Brazil, Canada, Ireland, Israel, Italy, the Netherlands, the United Kingdom, and Taiwan.[1] The Innocence Network and its members are also dedicated to improving the accuracy and reliability of the criminal legal system in future cases. Drawing on the lessons from cases in which the system convicted innocent persons, the Network advocates study and reform designed to enhance the truth-seeking functions of the criminal legal system to ensure that future wrongful convictions are prevented. The Network member organizations for amicus brief purposes include Actual Innocence Clinic at the University of Texas School of Law; After Innocence; Alaska Innocence Project; Arizona Justice Project; Boston College Innocence Program; California Innocence Project; Center on Wrongful Convictions; Connecticut Innocence Project/Post-Conviction Unit; Duke Center for Criminal Justice and Professional Responsibility; Exoneration Initiative; George C. Cochran Innocence Project at the University of Mississippi School of Law; Georgia Innocence Project; Hawai'i Innocence Project; Idaho Innocence Project; Illinois Innocence Project; Indiana University McKinney Wrongful Conviction Clinic;

Innocence Delaware; Innocence Project; Innocence Project Argentina; Innocence Project at University of Virginia School of Law; Innocence Project Brasil; Innocence Project London; Innocence Project New Orleans; Innocence Project of Florida; Innocence Project of Texas; Italy Innocence Project; Korey Wise Innocence Project; Loyola Law School Project for the Innocent; Manchester Innocence Project; Michigan Innocence Clinic; Mid-Atlantic Innocence Project; Midwest Innocence Project; Montana Innocence Project; New England Innocence Project; New York Law School Post-Conviction Innocence Clinic; North Carolina Center on Actual Innocence; Northern California Innocence Project; Office of the Ohio Public Defender, Wrongful Conviction Project; Ohio Innocence Project; Oklahoma Innocence Project; Oregon Innocence Project; Osgoode Hall Innocence Project; Proyecto Inocencia de Puerto Rico; Rocky Mountain Innocence Center; Taiwan Innocence Project; Thurgood Marshall School of Law Innocence Project; University of Arizona Innocence Project; University of British Columbia Innocence Project at the Allard School of Law; University of Miami Law Innocence Clinic; Wake Forest University Law School Innocence and Justice Clinic; Washington Innocence Project; West Virginia Innocence Project; and Wisconsin Innocence Project.

Jessica Horan-Block
The Bronx Defenders
Amicus The Bronx Defenders ("BxD") is a non-profit provider of innovative, holistic, client-centered criminal defense, family defense, civil legal services, and social work support to indigent people in the Bronx. Each year, BxD's advocates defend thousands of low-income Bronx residents in criminal, civil, family, and immigration cases and reach hundreds more through outreach programs and community legal education.

CERTIFICATE OF SERVICE

It is hereby certified that on this 25th day of April 2022, the foregoing **AMICUS CURIAE BRIEF OF INTERESTED LEGAL PROFESSIONALS** has been served upon:

Mark Loudon-Brown
Whitney Know Lee
SOUTHERN CENTER FOR HUMAN RIGHTS
60 Walton Street NW
Atlanta, Georgia 30303
mloudonbrown@schr.org
wlee@schr.org

Christopher Deneve
Brenda Lopez Romero
OFFICE OF THE GWINNETT COUNTY DISTRICT ATTORNEY
75 Langley Drive
Lawrenceville, Georgia 30046
Christopher.deneve@gwinnettcounty.com
Brenda.lopezromero@gwinnettcounty.com

/s/ Ronni Solomon
RONNI SOLOMON
Georgia Bar No. 666637